



ENEL301 - Fundamentals of Engineering
Economics and Management

Workshop 4.

Intellectual

property protection

Workshop Goal & Instructions

Goal: for you to be able to identify intellectual property mechanisms and their requirements, and reason the applicability of intellectual property in a range of engineering contexts

Instructions in brief:

- **Physicker** – Make a stance, defend your choice!
- **Zealiq and SkinIQ** - Work through the scenario with a group of 4-5; prepare to answer questions

Physicker

- Song Li, a senior developer at Physicker, tasked by her boss, Mavis Sloane, to use open-source tools to reduce costs.
- Song selects an open-source compiler with Physicker's preferred development languages.
- Some client hardware is not well-supported by the chosen compiler, and no suitable open-source alternatives exist.
- Song develops a new backend for the compiler to address the compatibility issue.
- Sloane wants to keep the new backend proprietary, while Song prefers to release it under an open-source license.



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Physicker

1. Release the backend as open source, under the same licence (conditions) as the original compiler.
2. Keep the developed intellectual property solely for Physicker as a trade secret
3. Negotiate a 'hybrid' approach, which allows Physicker to release some of the backend for open-access, while retaining the important code

Choose your spot – be ready to defend your position!



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Form your groups (you know the gig!)

- Get yourselves into groups of 4
- Introduce yourselves if needed
- Keep the worksheets after this workshop (they could come in handy later)
- Please avoid using Gen AI for this exercise – it won't help you if you get a similar question on the exam

Zealiqu vs SkinIQ

- You work for Zealiqu → contract says that IP developed on your own time belongs to Zealiqu
- You've been tinkering with friends from different companies
- Developed "SkinIQ" → a wearable sensor to detect dehydration via skin conductivity
- You've used some personal and work resources

Progress!

- A novel method for measuring skin conductivity (no prior art)
- Design drawings, schematics, code, and a working prototype
- Funding interest



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Zealiq vs SkinIQ

1. Who owns the IP?
2. How could you have clarified the confusion that now exists based on the answers to Questions 1?
3. Can the method of measuring skin conductivity be protected by a patent? If so, who would be listed as inventors?
4. Could the look and feel of the wearable device be protected by a registered design?
5. What challenges might you and your team face if you try to register the SkinIQ trademark?



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Take-away messages

- IP ownership can be complex
- Who owns what IP depends on lots of factors!
- Clear documentation and early clarification are essential
- Open-source license terms are legally binding
- Patents and registered designs have clear criteria
- Patents require novelty, inventiveness, and usefulness
- Registered designs require new and distinctive appearance
- Trademark confusion can be a real barrier to trademark protection and enforcement